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Case Number: 26NNCV02233 Hearing Date: August 14, 2026 Dept: T

Anahit

Arakelyan, individually, et al. vs. Raymond Shirvanyan, et al.

Demurrer

to Plaintiff's Complaint

Moving Party: Defendant

Arsine

Mkrtchyan

Responding Party: Plaintiff Anahit Arakelyan, individually

and on behalf of the estate of Andranik Ayvazyan

Tentative Ruling: Sustain

BACKGROUND

On March 27, 2026, Plaintiff Anahit Arakelyan, individually and on behalf of the estate of Andranik Ayvazyan, ("Plaintiff") filed a complaint against Defendants Raymond Shirvanyan ("Shirvanyan"), AR Cleveland LLC, Bank of America, N.A., Arsine Mkrtchyan ("Defendant"), Henry Azaryan aka Henrik Azaryan, Genrik Azaryan, and unnamed persons, alleging the following causes of action: (1) quiet title, (2) cancellation of deed; (3) declaratory relief; (4) action on notary bond; and (5) slander of title.

Defendant now demurs to the fourth

and fifth cause of action in the verified complaint on the ground that each cause of action is barred by the applicable statute of limitations.

Plaintiff opposes. No reply was filed.

ANALYSIS

I. Legal Standard

The

primary function of a pleading is to give the other party notice so that it may prepare its case [citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights.” (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240.) “A demurrer tests the legal sufficiency of the factual allegations in a complaint.” (Ivanoff v. Bank of America, N.A. (2017) 9 Cal.App.5th 719, 725.) It raises issues of law, not fact, regarding the form or content of the opposing party's complaint. (Code Civ. Proc. §§ 422.10, 589; see, also, Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (Donabedian, supra, 116 Cal.App.4th at 994.)

The general

rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) “All that is required of a plaintiff, as a matter of pleading, even as against a special demurrer, is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action.” (Rannard v. Lockheed Aircraft Corp. (1945) 26 Cal.2d 149, 156-157.)

“A demurrer

for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Chen v. Berenjian (2019) 33 Cal.App.5th 811, 822 [quoting Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616].) Demurrers “for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn. 3, internal quotations omitted; accord Lickiss

v. Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125, 1135.) “A demurrer for uncertainty should be overruled when the facts as to which the complaint is uncertain are presumptively within the defendant’s knowledge.” (Chen, supra, 33 Cal.App.5th at p. 822.)

Where a

demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment.

(Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However,

“[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

II. Meet

and Confer

Based on the declaration of Defendant’s counsel S. Calvin

Myung, it does not appear that counsel for the parties met and conferred in person, via telephone, or by video conference.

(See Myung Decl., at p. 1.) Nevertheless, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc. § 430.41, subd. (a)(4).)

III. Discussion

A. Statute

of Limitations

Code of Civil Procedure section 338(g)

provides that “[a]n action for slander of title to real property” must be commenced within three years. The

discovery rule applies to this limitations period for slander of title causes of action. (Arthur v. Davis

(1981) 126 Cal.App.3d 684, 692.) “A

cause of action for slander of title accrues, and the statute begins to run, when plaintiff could reasonably be expected to discover the existence of the

claim.” (Stalberg v. Western Title
Ins. Co. (1991) 230 Cal.App.3d 1223, 1230.)

“In order for the bar of the statute
of limitations to be raised by demurrer, the defect must clearly and
affirmatively appear on the face of the complaint; it is not enough that the
complaint shows merely that the action may be barred.” (E-Fab, Inc. v.
Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315-1316 [quoting McMahon
v. Republic Van & Storage Co., Inc. (1963) 59 Cal.2d 871, 874].) Although the statute of limitations is
generally raised as an affirmative defense by a defendant, “when a plaintiff
relies on the discovery rule or allegations of fraudulent concealment, as
excuses for an apparently belated filing of a complaint, the burden of pleading
and proving belated discovery of a cause of action falls on the plaintiff.” (Czajkowski v. Haskell & White, LLP
(2012) 208 Cal.App.4th 166, 174, internal quotes omitted [quoting Investors
Equity Life Holding Co. v. Schmidt (2011) 195 Cal.App.4th 1519, 1533].)

“More specifically, to overcome an
apparent limitations bar, the plaintiff claiming delayed discovery of the facts
constituting the cause of action has the burden of setting forth pleaded facts
to show (1) the time and manner of discovery and (2) the inability to have made
earlier discovery despite reasonable diligence. The burden is on the plaintiff
to show diligence, and conclusory allegations will not withstand demurrer.” (Czajkowski, supra, 208
Cal.App.4th at p. 175, internal quotes omitted [quoting E-Fab, supra,
153 Cal.App.4th at p. 1324].) “When a
plaintiff reasonably should have discovered facts for purposes of the accrual
of a case [sic] of action or application of the delayed discovery rule is
generally a question of fact, properly decided as a matter of law only if the
evidence (or, in this case, the allegations in the complaint and facts properly
subject to judicial notice) can support only one reasonable conclusion.” (Broberg
v. The Guardian Life Ins. Co. of America (2009) 171 Cal.App.4th 912, 921.)

Here, Plaintiff alleges that she is
the widow of decedent Andranik Ayvazyan and that, prior to his death, she and
the decedent held title to real property located at 1551 Cleveland Road,
Glendale, CA 91202, identified as APN:5629-007-009 (the “Property”). (Compl. ¶¶ 2, 10.) They allegedly
acquired title to the Property on February 10, 2010, as reflected by the Grant
Deed that was recorded on March 11, 2010.
(Id. ¶ 12, Exh. C.) Following their acquisition of title,
Plaintiff alleges that Defendant fraudulently arranged for the sale of the
Property without their knowledge or consent, resulting in the transfer of title

to the Property to Shirvanyan on August 1, 2013, as well as the subsequent transfer of this title from Shirvanyan to AR Cleveland LLC on May 27, 2016. (Id. ¶¶ 13–25.) The corresponding grant deeds for each of these transfers were recorded on September 12, 2013, and June 1, 2026, respectively. (See id. ¶ 14, Exh. C; id. ¶ 16, Exh. E.) In addition, Plaintiff alleges that Shirvanyan executed a Deed of Trust on September 6, 2013, for a loan in the amount of \$800,000.00 that was secured against the Property. (Id. ¶ 15.) This deed of trust was recorded on September 12, 2013, the same day as the grant deed. (See id. ¶ 15, Exh. D.)

Although the discovery rule may toll the running of the limitations period for Plaintiff's slander of title cause of action, as this cause of action otherwise clearly and affirmatively appears to be barred by the three year limitations period based on the dates of each recorded instrument, Plaintiff bears the burden of pleading facts establishing the time and manner of her discovery of this cause of action, as well as the her inability to have made earlier discovery despite reasonable diligence. (Czajkowski, *supra*, 208 Cal.App.4th at p. 175.) Despite asserting that she only recently discovered the sale of the Property in 2025 due to her residence in Armenia between 2012 and 2024 and her reliance on Defendant to manage several properties throughout this period, Plaintiff failed to set forth any such factual allegations in her complaint. (See generally Compl.) Given the lack of sufficient facts establishing delayed discovery, the demurrer to the slander of title cause of action is sustained.

Likewise, as "[a]n action against a notary public on the notary public's bond or in the notary public's official capacity except that a cause of action based on malfeasance or misfeasance is not deemed to have accrued until discovery, by the aggrieved party or the aggrieved party's agent, of the facts constituting the cause of action," (Code Civ. Proc. § 338, subd. (f)(1)), and as Plaintiff failed to allege sufficient facts establishing delayed discovery based on Defendant's malfeasance, the demurrer to the action on a notary bond is sustained.

Thus,

as these defects appear to be curable, and as a reasonable possibility of stating a good cause of action for slander of title exists, the demurrer to the fourth and fifth causes of action is sustained with leave to amend.

RULING

Defendant Arsine Mkrtchyan's Demurrer to Plaintiff's Complaint is SUSTAINED with leave to amend.